

Mock response to the notice to admit facts

WC/2024/227 · Shepherd v Workers' Compensation Regulator · what the Senior Appeals Officer would return, and why · **INTERNAL WORKING DOCUMENT - NOT FOR SERVICE OR FILING**

251 of 289 facts admitted (86%). 38 not admitted. 0 likely denied. The admissions are forced because the documents behind them are the Respondent's own decision, its own pleading, its own List of Documents, or the witness-conferencing and non-party disclosure it produced itself.

No.	Fact	Response	Why
THE ROLE, AND WHAT IT REQUIRED			
1	Metro South Hospital and Health Service produced a role description for the position of Administration Officer, Switchboard Services, Logan Hospital, which states the classification as "A03".	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
2	That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week".	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
3	That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital".	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
4	That role description names the contact for the position as "Chloe Taylor".	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
5	That role description states, as a key responsibility: "Maintain call queues to minimum at all times".	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
6	That role description states, as a key responsibility: "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate".	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
7	That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes...	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
8	That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups,...	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
9	That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not...	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
10	That role description states, as a key responsibility: "The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned".	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
11	That role description states, as a key responsibility: "Ability to work effectively as an individual with limited supervision to meet deadlines and establish work priorities, and work as a member of a...	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.

No.	Fact	Response	Why
12	That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high..."	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
13	That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period".	Not admitted	Employer document reaching the Appellant through the 2026 employment file. Not in the Respondent's List and never held by it.
14	Metro South Hospital and Health Service approved three movement forms recording changes to the Appellant's working hours, dated 27 February 2026, 17 April 2026 and 9 June 2026, each approved by Mr Scott...	Not admitted	2026 employer document, post-dating the claim.
15	Each of those three movement forms records the Appellant's shift arrangements as "Continuous Shift Worker".	Not admitted	2026 employer document, post-dating the claim.
16	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant ceased to be a continuous shift worker at any time before 18 June...	Admitted	True of the pleading. Admitting it closes the topic for good.
THE APPELLANT'S EMPLOYMENT, AND THE 17 JUNE 2020 AGREEMENT			
17	The Appellant signed an agreement allowing an 8-hour break between shifts on 17 June 2020.	Admitted	The Respondent's own pleading.
18	Review Decision 69983 records the Appellant's submission that the 8-hour agreement "was no longer fit for purpose since your transition from casual employment to full-time".	Admitted	The Respondent's own decision - List item 4.
19	That decision records the Appellant's submission that "since your commencement, you have signed new terms and working arrangements as a full-time employee".	Admitted	The Respondent's own decision - List item 4.
20	That decision records the employer's confirmation that there had been a "change to your employment contract and adjustments in your working hours" since 17 June 2020.	Admitted	The Respondent's own decision - List item 4.
21	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the 8-hour agreement of 17 June 2020 was reviewed, re-executed or re-confirmed...	Admitted	True of the pleading. Admitting it closes the topic for good.
22	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 1 May 2024, that the 8-hour...	Admitted	True of the pleading. Admitting it closes the topic for good.
23	Review Decision 69983 records that Ms Sandra Johnstone was the Switchboard Line Manager as at 8 December 2021.	Admitted	The Respondent's own decision - List item 4.
24	That decision records that Ms Danielle Cook was the "previous Switchboard Manager", and that "Ms Taylor was subsequently appointed to the Switchboard Manager role".	Admitted	The Respondent's own decision - List item 4.

No.	Fact	Response	Why
25	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was the Switchboard Manager on 17 June 2020.	Admitted	True of the pleading. Admitting it closes the topic for good.
THE HOURS THE APPELLANT SOUGHT, AND OBTAINED			
26	On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the...	Admitted	Own disclosure.
27	That email sets out clause 11.7 of the applicable agreement, headed "Additional Permanent Hours for Part-time Employees".	Admitted	Own disclosure.
28	On 8 August 2023 at 6:06 pm the Appellant sent an email to Ms Reese which states: "I can confirm that I will be in tomorrow 0700-1500 9th August. I was also looking to pick up another shift if possible."	Admitted	Own disclosure.
29	On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?"	Admitted	Own disclosure.
30	On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster".	Admitted	Own disclosure.
31	That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster and advocacy to become a union representative for the switchboard department."	Admitted	Own disclosure.
32	That application of 31 August 2023 records the Appellant's intention to become the Switchboard union delegate, in the same sentence as his willingness to take on additional night shifts.	Admitted	Own disclosure.
33	On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour...	Admitted	Own disclosure.
34	That email states: "I have no issues with shift work."	Admitted	Own disclosure.
35	That email attached a draft roster spreadsheet prepared by the Appellant.	Admitted	Own disclosure.
36	On 8 September 2023 at 11:42 am Ms Reese sent an email to the Appellant which states: "I am glad to hear things seem to be going well with Chloe and I am also glad to hear you applied for the additional..."	Admitted	Own disclosure.
37	On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent..."	Admitted	Own List, item 37.

No.	Fact	Response	Why
38	That email states: "happy to commence Full-time hours from the 16th October 2023".	Admitted	Own List, item 37.
STRESSOR 1(a) - THE DATABASE, AND THE DIRECTIVES ISSUED WITHOUT CONSULTATION			
39	On 18 July 2023 at 12:56 pm Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, sent an email to the Appellant and the Switchboard team, subject "Hello & Update", which states: "My current role...	Not admitted	Not itemised in the Respondent's List. Provenance is the Appellant's own mailbox.
40	That email states: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database."	Not admitted	Not itemised in the Respondent's List. Provenance is the Appellant's own mailbox.
41	That email states that Ms Stibbard's working hours were "every Tuesday and second Monday, 8:00 - 16:00".	Not admitted	Not itemised in the Respondent's List. Provenance is the Appellant's own mailbox.
42	That email states that a person wanting an entry updated was to "contact me directly, either via email or extension".	Not admitted	Not itemised in the Respondent's List. Provenance is the Appellant's own mailbox.
43	That email states that if an entry was needed on a day Ms Stibbard was not present and was urgent, it was to be sent to Ms Taylor.	Not admitted	Not itemised in the Respondent's List. Provenance is the Appellant's own mailbox.
44	That email states that a request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back".	Not admitted	Not itemised in the Respondent's List. Provenance is the Appellant's own mailbox.
45	That email states: "I have also removed the Contact & Number Changes book out of the room, as I would prefer, for now, to be sent all changes to my email."	Not admitted	Not itemised in the Respondent's List. Provenance is the Appellant's own mailbox.
46	Review Decision 69983 records: "Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, emailed the staff members on 18 July 2023 to provide an update with respect to her role."	Admitted	The Respondent's own decision - List item 4.
47	That decision records: "She explained her role was a project role, which was a temporary position that focused on fixing the database used by the switchboard."	Admitted	The Respondent's own decision - List item 4.
48	That decision records: "She informed that while she fixed it, she would be removing everyone's access to it, and asked for anyone who needed to amend, add or remove entries, to directly contact her or Ms...	Admitted	The Respondent's own decision - List item 4.
49	Review Decision 69983 records: "On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more...	Admitted	The Respondent's own decision - List item 4.
50	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the role description for the position of Administration Officer, Switchboard...	Admitted	True of the pleading. Admitting it closes the topic for good.

No.	Fact	Response	Why
51	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that access to the database used by the Switchboard was restored to the Appellant at...	Admitted	True of the pleading. Admitting it closes the topic for good.
52	On 16 June 2023 the Appellant wrote raising, among other workplace issues: "No consultation of the team members or the department when making major changes such as additional shift... commence/finish [times]."	Admitted	Filed in the proceeding.
53	On 3 May 2024 at 3:06 pm Vivian Kwok, MASPER Registrar, sent an email to Ms Taylor, copied to Dr Pan Jane Wong, with the subject "Switchboard issues 2nd and 3rd May 2024", which states: "I've been requested..."	Admitted	Own List, item 27 names this email.
54	That email lists five occasions on 2 and 3 May 2024 on which a call was routed by the Switchboard to a number other than the number sought, being 2 May 2024 at 14:47, and 3 May 2024 at 10:00 am, 10:22 am,...	Admitted	Own List, item 27 names this email.
55	That email records of the occasion at 14:46 on 3 May 2024: "MET call team called x5290 asking where MET call was located 'VHUB' - switchboard could not tell them where VHUB was. Had to be redirected by MASPER".	Admitted	Own List, item 27 names this email.
56	On 8 May 2024 at 5:28 pm Vivian Kwok sent a further email to Ms Taylor, copied to Dr Wong, with the subject "Re: Switchboard issues 5 May, 7 May, and 8 May", which states: "Here are the switchboard issues..."	Admitted	Own List, item 27 names this email.
57	That further email lists four occasions, being 5 May 2024 at 14:45, 7 May 2024 at 0745, and 8 May 2024 at 8:53 am and 9:59 am.	Admitted	Own List, item 27 names this email.
58	That further email records of the occasions on 8 May 2024 that a call was "incorrectly put through to MASPER" on each occasion.	Admitted	Own List, item 27 names this email.
59	The email of Vivian Kwok of 8 May 2024 was sent on the fifth calendar day after her email of 3 May 2024.	Admitted	Arithmetic on admitted numbers.
60	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any communication was sent to Logan Switch or to the Switchboard staff...	Admitted	True of the pleading. Admitting it closes the topic for good.
61	Ms Taylor's email to Logan Switch of 9 May 2024 at 10:15 am states: "I have included below email trail for your reference. There have been many ongoing issues raised by the MASPER and the medical department..."	Admitted	Own List, item 27 names this email.
62	Review Decision 69983 records that in an email dated 23 August 2023 Ms Taylor "noted her start time would range between 6:00 to 9:00 am, and her finish time would range between 2:00 to 5:00 pm".	Admitted	The Respondent's own decision - List item 4.

No.	Fact	Response	Why
63	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor stated fixed office hours to the Switchboard staff at any time between...	Admitted	True of the pleading. Admitting it closes the topic for good.
64	The occasions reported by Vivian Kwok on 3 and 8 May 2024 occurred while the after-hours on-call arrangement notified by Ms Taylor on 15 April 2024 was in force.	Admitted	Own disclosure.
65	On 9 May 2024 at 9:20 am Ms Taylor sent an email to Vivian Kwok, MASPER Registrar, and Dr Pan Jane Wong, subject "RE: Switchboard issues 5 May, 7 May, and 8 May", which states: "Can I please confirm your...	Admitted	Own List, item 27 names this email.
66	On 9 May 2024 at 10:15 am Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, subject "MASPER process", directing that "all calls that switch transfer to the MASPER...	Admitted	Own List, item 27 names this email.
67	On 21 May 2024 Ms Reese asked the Appellant to identify the directives about which he had consultation concerns.	Admitted	Filed in the proceeding.
68	On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard".	Admitted	Own List, item 25.
69	That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised."	Admitted	Own List, item 25.
70	That email states: "This new process is effective from today."	Admitted	Own List, item 25.
71	That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours."	Admitted	Own List, item 25.
72	Ms Taylor signed that email as "A/Switchboard Manager".	Admitted	Own List, item 25.
73	Ms Taylor's email to all Switchboard staff of 17 May 2024 at 9:30 am states: "My office hours can vary due to having to take my girls to school in the morning, on the days that I do have school drop off I...	Admitted	Own disclosure.
74	That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week."	Admitted	Own disclosure.
75	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 16(b)(iv): "Ms Taylor then raised this as an issue with Ms Reese at 1:20 pm".	Admitted	True of the pleading. Admitting it closes the topic for good.
76	On 17 May 2024 at 1:20 pm Ms Taylor sent an email to Ms Adriana McNamee with the subject "FW: Office Hours and Departmental Directives", which states: "when staff call in for any leave to please contact me...	Admitted	Own disclosure.

No.	Fact	Response	Why
77	On 15 May 2024 at 1:15 pm the Appellant sent an email to Ms Taylor and Logan Switch, copied to Switchboard staff, Ms Reese and LBH_HR, with the subject "Office Hours and Departmental Directives", which...	Admitted	Own disclosure.
78	That email of the Appellant states: "please ensure that any directives and changes within the department is made in consultation with the team to ensure that any concerns can be appropriately addressed."	Admitted	Own disclosure.
79	On 15 May 2024 at 6:23 pm Ms Reese replied to the Appellant, copied to Ms Taylor and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply...	Admitted	Own disclosure.
80	That reply of Ms Reese asked the Appellant to retract his email.	Admitted	Own disclosure.
81	On 15 May 2024 at 7:09 pm the Appellant replied to Ms Reese stating: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer..."	Admitted	Own disclosure.
82	On 21 May 2024 at 2:53 pm Ms Reese replied to the Appellant stating: "With regards to your concerns about having more clarity as to what are Chole's business hours I will follow up on the issues raised."	Admitted	Own disclosure.
83	That reply of Ms Reese states: "can I ask was there one or more particular changes and/or directives where you had concerns about consultation and communication?"	Admitted	Own disclosure.
84	The email of Ms Taylor to Ms McNamee of 17 May 2024 at 1:20 pm states, of the Appellant's telephone call of 13 May 2024: "I told him I am more than happy to cover his shift and if he was unwell, it would be..."	Admitted	Own disclosure.
85	That email of Ms Taylor states: "I sent an email (attached) to advise Cory again of the call process and a query about his leave. I also sent a follow up text, advised by the last HR rep to also follow up..."	Admitted	Own disclosure.
86	That email of Ms Taylor records that on each of 13, 14 and 15 May 2024 the Appellant notified his unavailability by telephoning the Switchboard.	Admitted	Own disclosure.
87	No document recording that Ms McNamee sought the Appellant's account of the matters described in Ms Taylor's email of 17 May 2024 at 1:20 pm has been identified or disclosed in the Respondent's disclosed...	Admitted	A statement about the Respondent's own disclosure; it can check it. Expect admission, possibly qualified "as at the date of this response".
STRESSOR 1(a) - THE DELAY IN COMMUNICATION AND THE MATTERS RAISED IN MAY 2024			
88	On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your..."	Admitted	Served on the Respondent; also its own disclosure.

No.	Fact	Response	Why
89	On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory..."	Admitted	Served on the Respondent; also its own disclosure.
90	The email of Ms Marriott of 20 May 2024 at 11:03 am states that the calls had continued in the intervening period: "we continue to get calls put through to us for Respiratory Medical Outpatients".	Admitted	Served on the Respondent; also its own disclosure.
91	The Appellant's email of 20 May 2024 at 2:05 pm was sent three hours and two minutes after the email of Ms Marriott of that day at 11:03 am.	Admitted	Arithmetic on admitted numbers.
92	The Appellant's email of 20 May 2024 at 2:05 pm was sent five days, two hours and eighteen minutes after the first email of Ms Marriott of 15 May 2024 at 11:47 am.	Admitted	Arithmetic on admitted numbers.
93	Ms Taylor's reply of 20 May 2024 at 4:30 pm was sent two hours and twenty-five minutes after the Appellant's email of that day at 2:05 pm.	Admitted	Arithmetic on admitted numbers.
94	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Mr Parry communicated with Ms Marriott, or with the Integrated Respiratory...	Admitted	True of the pleading. Admitting it closes the topic for good.
95	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the document "Outpatients Department - Clinic contact Details" was amended at...	Admitted	True of the pleading. Admitting it closes the topic for good.
96	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Switchboard staff were notified, at any time on or before 20 May 2024, of...	Admitted	True of the pleading. Admitting it closes the topic for good.
97	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was rostered to work after 2:05 pm on 20 May 2024.	Admitted	True of the pleading. Admitting it closes the topic for good.
98	Ms Taylor's reply of 20 May 2024 at 4:30 pm states that the matter had been discussed "this morning", being the morning of 20 May 2024.	Admitted	Served on the Respondent; also its own disclosure.
99	No document created on 20 May 2024 recording the discussion referred to in that reply has been identified or disclosed in the Respondent's disclosed material presently before the Commission.	Admitted	A statement about the Respondent's own disclosure; it can check it. Expect admission, possibly qualified "as at the date of this response".
100	The email of Ms Marriott of 20 May 2024 at 11:03 am was sent on the fifth calendar day after her email of 15 May 2024 at 11:47 am.	Admitted	Served on the Respondent; also its own disclosure.
101	The office hours stated by Ms Taylor in her email of 17 May 2024 at 9:30 am concluded at 2:30 pm.	Admitted	Own disclosure.
102	On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document:..."	Admitted	Served on the Respondent; also its own disclosure.

No.	Fact	Response	Why
103	That email of the Appellant was sent within the office hours Ms Taylor had stated to all Switchboard staff on 17 May 2024.	Admitted	Own disclosure.
104	That email of the Appellant was sent from the Logan Switch account.	Admitted	Served on the Respondent; also its own disclosure.
105	On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the..."	Admitted	Served on the Respondent; also its own disclosure.
106	That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing."	Admitted	Served on the Respondent; also its own disclosure.
107	That reply of Ms Taylor was sent two hours after the conclusion of the office hours she had stated to all Switchboard staff on 17 May 2024.	Admitted	Own disclosure.
108	Ms Stibbard's on-call roster email of 13 May 2024 was addressed to the Switchboard team and included Mr Richard Parry among its recipients.	Admitted	Own disclosure.
109	Ms Taylor's email of 17 May 2024 headed "Switchboard Manager - On call and Hours" included Mr Richard Parry among its recipients.	Admitted	Own disclosure.
110	No document recording a communication sent by Ms Taylor to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024 has been identified or disclosed in the Respondent's disclosed material...	Admitted	A statement about the Respondent's own disclosure; it can check it. Expect admission, possibly qualified "as at the date of this response".
111	No document recording a communication sent by Mr Parry to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024 has been identified or disclosed in the Respondent's disclosed material...	Admitted	A statement about the Respondent's own disclosure; it can check it. Expect admission, possibly qualified "as at the date of this response".
112	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 20 May 2024 at 11:03 am...	Admitted	True of the pleading. Admitting it closes the topic for good.
113	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 15 May 2024 at 11:47 am at...	Admitted	True of the pleading. Admitting it closes the topic for good.
114	On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff, which states: "regardless of my start/finish times next week you are to please contact me..."	Admitted	Own disclosure.
STRESSOR 1(d) - THE SPECIAL PANDEMIC LEAVE APPLICATION OF FEBRUARY 2024			
115	The myHR leave request history for Process Reference 15480560 records: "Employee - Cory Shepherd : created draft", 20.02.2024, 11:24:48.	Admitted	Own disclosure.

No.	Fact	Response	Why
116	That history records: "Employee - Cory Shepherd : submitted request", 20.02.2024, 11:41:27.	Admitted	Own disclosure.
117	That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 21.02.2024, 12:23:43.	Admitted	Own disclosure.
118	That history records: "Employee - Cory Shepherd : submitted request", 28.02.2024, 06:07:32.	Admitted	Own disclosure.
119	That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 29.02.2024, 09:06:07.	Admitted	Own disclosure.
120	That history records: "Employee - Cory Shepherd : submitted request", 29.02.2024, 11:07:28.	Admitted	Own disclosure.
121	That history records: "Reviewer - Chloe Donovan-Taylor : approved request", 29.02.2024, 11:21:03.	Admitted	Own disclosure.
122	That history records: "Manager - Tammy Reese : approved request", 01.03.2024, 16:05:08.	Admitted	Own disclosure.
123	That history records the Appellant as having submitted the request on three occasions.	Admitted	Own disclosure.
124	That history records Ms Taylor as having declined the request on two occasions.	Admitted	Own disclosure.
125	The interval between the submission recorded at 11:07:28 on 29 February 2024 and the approval recorded at 11:21:03 on the same day is thirteen minutes and thirty-five seconds.	Admitted	Arithmetic on admitted numbers.
126	The interval between the draft recorded at 11:24:48 on 20 February 2024 and the approval recorded at 16:05:08 on 1 March 2024 is ten days, four hours and forty minutes.	Admitted	Arithmetic on admitted numbers.
127	In that history Ms Taylor is identified as "Reviewer" and Ms Reese is identified as "Manager".	Admitted	Own disclosure.
128	The Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms Noelle Cridland as Health Service Chief Executive and effective as at 5 December 2022,...	Admitted	Own disclosure.
129	That Instrument states: "This Instrument does not permit the further sub-delegation of the powers outlined in (a) above."	Admitted	Own disclosure.
130	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was a Band 9 delegate at any time in February 2024.	Admitted	True of the pleading. Admitting it closes the topic for good.
131	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Reese was a Band 9 delegate at any time in February or March 2024.	Admitted	True of the pleading. Admitting it closes the topic for good.

No.	Fact	Response	Why
132	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not identify the person who exercised the power sub-delegated by that Instrument in respect of...	Admitted	True of the pleading. Admitting it closes the topic for good.
133	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 14(c): "Ms Taylor asked the appellant to submit a Special Pandemic Leave request via MyHR and attach a..."	Admitted	True of the pleading. Admitting it closes the topic for good.
134	That amended statement of facts and contentions states at paragraph 14(d): "Ms Taylor did decline the application because on her assessment, the required statutory declaration was not attached to the MyHR..."	Admitted	The Respondent's own pleading.
135	That amended statement of facts and contentions states at paragraph 14(e): "says that a review indicates that in fact, the attachments were present on the appellant's submission".	Admitted	The Respondent's own pleading.
136	That amended statement of facts and contentions states at paragraph 14(f): "says this was a matter of human error by Ms Taylor on the background of high work demands surrounding the management of staff with..."	Admitted	The Respondent's own pleading.
137	Review Decision 69983 records that on 20 February 2024 the Appellant messaged Ms Taylor stating he had tested positive for Covid, and that Ms Taylor "requested that you send it to her so she could submit it..."	Admitted	The Respondent's own decision - List item 4.
138	That decision records that Ms Taylor "noted the statutory declaration you provided was sufficient evidence" and "requested for you to resubmit your leave days".	Admitted	The Respondent's own decision - List item 4.
139	That decision records that the Appellant "messaged you were confused about why your amended leave request was declined" and "noted you did everything as required".	Admitted	The Respondent's own decision - List item 4.
140	The myHR submissions report produced as Item 11 records a Smart Leave Request with process number 15480560, submitted on 20 February 2024, with an effective date of 20 February 2024, a processing date of 1...	Admitted	Own disclosure.
141	That report records the initiator of that Smart Leave Request as the Appellant.	Admitted	Own disclosure.
142	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any other Switchboard employee was required to submit a Special Pandemic Leave...	Admitted	True of the pleading. Admitting it closes the topic for good.
STRESSOR 1(c) - THE MATTERS RAISED IN AUGUST AND SEPTEMBER 2023, AND THE RESPONSE			

No.	Fact	Response	Why
143	The Appellant's email of 7 August 2023 at 12:21 pm states: "Please give me some space and stop with any further communication as I have had enough of it."	Admitted	Own disclosure.
144	On 7 August 2023 at 1:43 pm Ms Taylor replied to the Appellant, copied to Ms Reese and Ms Smith, stating: "My sincere apologies about your rostered Monday 7th 0700-1500 shift, I can confirm this was an..."	Admitted	Own disclosure.
145	That email of Ms Taylor states: "Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period".	Admitted	Own disclosure.
146	On 7 August 2023 at 3:13 pm Ms Reese replied to the Appellant stating: "As Chloe is your current line manager and as such you are required to continue to communicate with Chloe for work related issues,..."	Admitted	Own disclosure.
147	On 7 August 2023 at 5:11 pm Ms Reese sent an email to Ms Taylor attaching a document titled "Rostered shifts Cory S. past 8 months.xlsx", which states: "can I ask if you can send me an email of your recent..."	Admitted	Own disclosure.
148	On 29 August 2023 at 6:57 pm Ms Reese sent the Appellant an email attaching HR Policy E12 - Individual Employee Grievances, and setting out how a grievance could be submitted.	Admitted	Own disclosure.
149	On 4 September 2023 the Appellant replied to Ms Reese stating: "I have also spoken to Chloe. We are seemingly on the path to working in a beneficial way and hopefully will not need to go through this process."	Admitted	Own disclosure.
150	The Appellant did not submit a grievance under HR Policy E12 in 2023.	Admitted	Own disclosure.
THE PROCESS FOR NOTIFYING UNAVAILABILITY FOR A ROSTERED SHIFT			
151	On 14 May 2024 at 12:08 pm Ms Taylor sent an email to the Appellant, copied to Ms Reese, with the subject "Sick leave 14.05.24", which states: "in business hours you are to follow the correct process and..."	Admitted	Own disclosure.
152	On 13, 14 and 15 May 2024 the Appellant notified his unavailability for his rostered shift by telephoning the Switchboard.	Admitted	Own disclosure.
153	The email of Ms Taylor of 15 April 2024 states that during office hours the Appellant was to contact her "through switch/office or mobile".	Admitted	Own List, item 25.
154	The email of Ms Taylor of 14 May 2024 at 12:08 pm states that the Appellant could contact her "either through switch or my office/mobile".	Admitted	Own disclosure.
155	Each of those two emails identifies the Switchboard as a means by which the Appellant could contact Ms Taylor.	Admitted	Own disclosure.

No.	Fact	Response	Why
156	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 14 May 2024, that notifying his...	Admitted	True of the pleading. Admitting it closes the topic for good.
STRESSOR 1(g) - THE UNION DELEGATE, AND THE CONSULTATION ON ROSTERS			
157	The Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, December 2024, states: "In accordance with Clause 6.2 of the Hospital and Health Service General Employees (Queensland..."	Not admitted	Employer document, not in the Respondent's List.
158	That document states: "Agreement is defined as obtaining consent from the majority (50+1%) of affected employees, with all affected employees invited to cast their vote via an online Ballot Form."	Not admitted	Employer document, not in the Respondent's List.
159	The Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital states: "On 22 July 2021, Metro South Health (MSH) management, affected staff and Together Queensland representatives..."	Not admitted	Employer document, not in the Respondent's List.
160	That Consultation Paper states: "In August 2024, Switchboard Services, Logan Hospital was realigned from Health Information Management Services (HIMS), MSH to Corporate Services, LBHS, MSH."	Not admitted	Employer document, not in the Respondent's List.
161	That Consultation Paper states that the proposed roster "is intended to introduce a more equitable roster for Switchboard Services, Logan Hospital staff".	Not admitted	Employer document, not in the Respondent's List.
162	That Consultation Paper states that the proposed roster includes: "Redistribution of nights for greater equity based on FTE."	Not admitted	Employer document, not in the Respondent's List.
163	That Consultation Paper states that the proposed roster includes: "Rotational roster for predictability and equity to all staff ensuring fair distribution of penalties."	Not admitted	Employer document, not in the Respondent's List.
164	That Consultation Paper states that the proposed roster includes: "An additional eight (8) hour shift (0700-1500) on Saturdays, to assist with call volume."	Not admitted	Employer document, not in the Respondent's List.
165	That Consultation Paper states that the proposed roster includes: "Extension of the current weekday (Mon-Fri) 0900-1400 five (5) hour shift to a 0700-1500 eight (8) hour shift."	Not admitted	Employer document, not in the Respondent's List.
166	The Consultation outcome document states that on 14 November 2024 a consultation document and proposed roster for Switchboard Services, Logan Hospital was released for consultation, and that affected staff,...	Not admitted	Employer document, not in the Respondent's List.
167	That document states that seventeen affected employees were invited to cast a vote, that seventeen votes were received, that fourteen "Yes" votes and three "No" votes were received, and that the proposed...	Not admitted	Employer document, not in the Respondent's List.

No.	Fact	Response	Why
168	On 3 November 2025 Mr Heath Moran, Organiser, Together Queensland, sent an email to Ms Carolyn Jeffrey, Ms Patricia Conaghan and the Appellant which states: "Firstly, congratulations to you all on being..."	Not admitted	Union document, not in the Respondent's List.
169	The Appellant was endorsed as a workplace delegate on or about 3 November 2025.	Not admitted	Union document, not in the Respondent's List.
170	The period between April 2023, when the Appellant expressed interest in assuming the role of union delegate, and 3 November 2025, when he was endorsed as a workplace delegate, is approximately thirty-one...	Not admitted	Union document, not in the Respondent's List.
171	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that agreement under clause 6.2 of the Hospital and Health Service General Employees...	Admitted	True of the pleading. Admitting it closes the topic for good.
172	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that a ballot of affected employees was conducted before the change to after-hours...	Admitted	True of the pleading. Admitting it closes the topic for good.
STRESSOR 2 - THE PAY CORRECTION, AND THE THREAD "COREY SHEPHERD 388372 PAY ISSUES"			
173	The Respondent's disclosure contains an email thread with the subject "Corey Shepherd 388372 Pay issues".	Admitted	Own disclosure.
174	The first message in that thread is dated 3 May 2024, is from PayrollMetroSouth, is addressed to Ms C Taylor, and is copied to the Appellant.	Admitted	Own disclosure.
175	That message is signed "Elaine Grant, Client Service Officer, Metro South Payroll Team, Payroll Transactional Services, Corporate Enterprise Solutions, Corporate Services Queensland Health".	Admitted	Own disclosure.
176	That message states: "Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is toping up the missing wages from his RDO balance."	Admitted	Own disclosure.
177	That message states: "This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775."	Admitted	Own disclosure.
178	That message states: "The same has happened for the next fortnight 19.02.24 due to 28.02.24 shift AVAC PRN 15605601 has this shift as 7hrs topping up 0.95 for missing hour."	Admitted	Own disclosure.
179	That message states: "Fortnight 18.03.24 is the opposite and has too many ordinary shifts for the fortnight resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime."	Admitted	Own disclosure.
180	That message states: "Fortnight 01.04.24 is the same, 0.95hrs over contracted 76hrs needs to be overtime."	Admitted	Own disclosure.

No.	Fact	Response	Why
181	That message states: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended."	Admitted	Own disclosure.
182	The thread contains a message dated 10 May 2024 at 2:21 pm from the Appellant, addressed to PayrollMetroSouth and to Ms E Grant.	Admitted	Own disclosure.
183	The thread contains a message dated 13 May 2024 at 8:21 am from PayrollMetroSouth, addressed to the Appellant.	Admitted	Own disclosure.
184	That message of 13 May 2024 states: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will..."	Admitted	Own disclosure.
185	The thread contains a message dated 21 May 2024 at 12:33 pm from Ms C Taylor, addressed to the Appellant, with the subject "RE: Corey Shepherd 388372 Pay issues".	Admitted	Own disclosure.
186	That message of 21 May 2024 states: "Just letting you know that I am still I am waiting payroll confirmation about a few of these payroll issues and as soon as I do get that confirmation, I will submit an..."	Admitted	Own disclosure.
187	The Respondent's disclosure contains a message dated 28 May 2024 at 8:36 am from Ms C Taylor, addressed to the Appellant and copied to Ms T Reese, with the subject "Validation of Claims older than 3 months..."	Admitted	Own disclosure.
188	That message of 28 May 2024 states: "Please find attached Validation of claims older than 3 months, please sign and return to be as soon as possible so I can escalate for delegate approval."	Admitted	Own disclosure.
189	The myHR submissions report produced as Item 11 records seven submissions for the Appellant in the period 1 February 2024 to 31 May 2024.	Admitted	Own disclosure.
190	That report records five of those seven submissions as an "Attendance Variation and Allowance Claim (AVAC)".	Admitted	Own disclosure.
191	That report records the initiator of each of those five Attendance Variation and Allowance Claims as "Donovan-Taylor, Chloe".	Admitted	Own disclosure.
192	That report records the initiator of no Attendance Variation and Allowance Claim in that period as the Appellant.	Admitted	Own disclosure.
193	That report records a submission with process number 16328886 as an Attendance Variation and Allowance Claim submitted on 15 May 2024, with a processing date of 16 May 2024, and a status of "Completed".	Admitted	Own disclosure.
194	That report records a submission with process number 16450619 as an Attendance Variation and Allowance Claim submitted on 28 May 2024, with an effective date of 30 March 2024, a processing date of 30 May...	Admitted	Own disclosure.

No.	Fact	Response	Why
195	That report records the status of every other Attendance Variation and Allowance Claim in the period as "Completed".	Admitted	Own disclosure.
196	That report records the following process numbers with the following submission dates: 15325947, submitted 6 February 2024; 15480560, submitted 20 February 2024; 15848692, submitted 27 March 2024; 15849573,...	Admitted	Own disclosure.
197	In that report, process numbers increase as submission dates increase.	Admitted	Own disclosure.
198	The number 15397775 falls between 15325947 and 15480560.	Admitted	Arithmetic on admitted numbers.
199	The number 15605601 falls between 15480560 and 15848692.	Admitted	Arithmetic on admitted numbers.
200	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 20(c): "any discrepancies or errors were remedied in a timely manner".	Admitted	True of the pleading. Admitting it closes the topic for good.
201	That amended statement of facts and contentions states at paragraph 20(f): "there are no outstanding underpayments for the appellant".	Admitted	The Respondent's own pleading.
202	That amended statement of facts and contentions states at paragraph 21(c): "says Ms Taylor submitted the AVAC on 28 May 2024".	Admitted	The Respondent's own pleading.
203	Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in that report.	Admitted	Own disclosure.
STRESSOR 3 - THE ROSTER, AND THE EMPLOYER'S KNOWLEDGE OF FATIGUE BEFORE 18 JUNE 2024			
204	On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night...	Admitted	Own disclosure.
205	That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer".	Admitted	Own disclosure.
206	On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Re: Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a...	Admitted	Own disclosure.
207	That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback".	Admitted	Own disclosure.
208	That email of Ms Reese also states: "I asked Chloe to follow upon what should be the interpretation of this section with HR".	Admitted	Own disclosure.
209	On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get...	Admitted	Own disclosure.
210	On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has...	Admitted	Own disclosure.

No.	Fact	Response	Why
211	That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run thought this and we say at best there would be a rating of 11 which is moderate".	Admitted	Own disclosure.
212	That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters".	Admitted	Own disclosure.
213	On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our...	Admitted	Own disclosure.
214	That email of Ms Reese to LBH_HR attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline.	Admitted	Own disclosure.
STRESSOR 3 - THE BREAK OF 17-18 MARCH 2024, THE 2020 AGREEMENT, AND THE LEAVE OF 19 MARCH 2024			
215	By email dated 7 July 2026 Ms Lyndelle Forrest, Senior Consultant, Human Resources, Logan and Beaudesert Health Service, wrote to the Appellant stating that the roster "provides more than 10-hour breaks...	Not admitted	2026 employer document, post-dating the claim.
216	That email states: "acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have...	Not admitted	2026 employer document, post-dating the claim.
217	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 22(a): "says the shift was separated by only a 7-hour break (rather than an 8-hour break) says that this was...	Admitted	True of the pleading. Admitting it closes the topic for good.
218	That amended statement of facts and contentions states at paragraph 22(e): "says in June 2020, the Appellant signed an agreement allowing an 8-hour break between shifts".	Admitted	The Respondent's own pleading.
219	That amended statement of facts and contentions states at paragraph 22(b): "says that the appellant could refuse shifts at anytime".	Admitted	The Respondent's own pleading.
220	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the consecutive shifts of 17 and 18 March 2024 arose from a staff initiated...	Admitted	True of the pleading. Admitting it closes the topic for good.
221	The Leave Takings Report produced by Metro South Hospital and Health Service in respect of 19 March 2024 records the Leave Category as "Sick", the Leave Type as "Sick Leave", the Time Code as "SCK", the...	Admitted	MSH production under the NNPD - List item 43.
222	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 24(a): "says that the appellant took leave on 19 March 2024 but says this was paid leave".	Admitted	True of the pleading. Admitting it closes the topic for good.

No.	Fact	Response	Why
223	That amended statement of facts and contentions states at paragraph 24(b): "says that pursuant to clause 18.10 of the Award, the appellant is not entitled to fatigue leave, because he was not performing..."	Admitted	The Respondent's own pleading.
224	That amended statement of facts and contentions states at paragraph 27: "The respondent contends that any management action involved in the causation of any injury to the Plaintiff was reasonable management..."	Admitted	The Respondent's own pleading.
225	Review Decision 69983 records that the policy regarding fatigue leave following weekends and rostered days off is dated June 2020.	Admitted	The Respondent's own decision - List item 4.
226	That decision records: "The policy notes that many problems can be overcome regarding fatigue leave by either not rostering the employee who is on call for the first shift of the following day and not..."	Admitted	The Respondent's own decision - List item 4.
227	That decision records that section 23 of the Hospital and Health Service General Employees (Queensland Health) Award provides that "where an employee is in receipt of the additional week's leave as..."	Admitted	The Respondent's own decision - List item 4.
STRESSOR 3 - THE FATIGUE LEAVE REQUEST OF 8 APRIL 2024, THE DELAY, AND THE REFUSAL OF 1 MAY 2024			
228	Review Decision 69983 records: "You emailed Ms Taylor on 8 April 2024 and requested a review of your payment for the pay period between 8 March 2024 and 31 March 2024."	Admitted	The Respondent's own decision - List item 4.
229	That decision records that in that email the Appellant "noted the Hospital and Health Service General Employees (Queensland Health) Award stipulated in part 5 section 15 that unless there was a mutual..."	Admitted	The Respondent's own decision - List item 4.
230	That decision records that Ms Taylor replied on 9 April 2024 and "added she also escalated your enquiry regarding fatigue leave to Human Resources to confirm policies around this".	Admitted	The Respondent's own decision - List item 4.
231	That decision records that in the same reply Ms Taylor "proceeded to acknowledge the importance of communication and requested that you raise your concerns with her as soon as they arise so she could action..."	Admitted	The Respondent's own decision - List item 4.
232	That decision records that on 24 April 2024 the Appellant emailed Ms Taylor and "expressed your dissatisfaction with the process and that it had been more than 2 weeks without any response or overtime payment".	Admitted	The Respondent's own decision - List item 4.
233	That decision records: "Ms Taylor responded to your email on 1 May 2024 via email and stated that after a consultation with payroll and Human Resources, your request for fatigue payment for 18 March 2024..."	Admitted	The Respondent's own decision - List item 4.
234	That decision records, of the same email of 1 May 2024: "However, she noted you are able to terminate this agreement going forward."	Admitted	The Respondent's own decision - List item 4.
235	The period between the Appellant's email of 8 April 2024 and Ms Taylor's response of 1 May 2024 is 23 days.	Admitted	Arithmetic on admitted numbers.

No.	Fact	Response	Why
236	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the Appellant's enquiry regarding fatigue leave at any...	Admitted	True of the pleading. Admitting it closes the topic for good.
237	Review Decision 69983 records the Appellant's response of 9 August 2024 as stating that the break between the shifts of 17 and 18 March 2024 "did not include travel time", and: "If you factored in travel...	Admitted	The Respondent's own decision - List item 4.
238	That decision records the employer's response of 6 September 2024 as confirming "you did not formally rescind the 8-hour agreement signed by you on 17 June 2020 and the change to your employment contract...	Admitted	The Respondent's own decision - List item 4.
239	That decision records: "The employer did not mention your shift on 18 March 2024."	Admitted	The Respondent's own decision - List item 4.
240	That decision states: "In considering the evidence, I find there was uncertainty between you and the employer regarding whether the 8-hour agreement continued to apply."	Admitted	The Respondent's own decision - List item 4.
241	That decision records that payroll was, as at 1 May 2024, "still reviewing your entitlements regarding public holidays not required arising while you were a part-time employee".	Admitted	The Respondent's own decision - List item 4.
242	That decision records Ms Taylor as confirming "that since your commencement of full-time employment, all payments for public holidays not required had been processed".	Admitted	The Respondent's own decision - List item 4.
THE EMPLOYER'S OWN STATEMENTS ABOUT ITS SYSTEMS AND RECORDS			
243	By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated...	Admitted	Own disclosure.
244	That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change...	Admitted	Own disclosure.
245	That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants."	Admitted	Own disclosure.
246	That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested."	Admitted	Own disclosure.
247	That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via...	Admitted	Own disclosure.

No.	Fact	Response	Why
248	That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024."	Admitted	Own disclosure.
MATTERS NOT DONE, AND MATTERS NOT AVAILABLE			
249	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position...	Admitted	True of the pleading. Admitting it closes the topic for good.
250	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk management training was provided to the Appellant in respect of...	Admitted	True of the pleading. Admitting it closes the topic for good.
251	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard...	Admitted	True of the pleading. Admitting it closes the topic for good.
252	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as...	Admitted	True of the pleading. Admitting it closes the topic for good.
253	No document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024 has been identified or disclosed in the Respondent's disclosed material presently...	Admitted	The Respondent's own document.
STRESSOR 3(d) - THE RESPONDENT'S OWN REVIEW DECISION OF 24 OCTOBER 2024			
254	Review Decision 69983 dated 24 October 2024 records that in its response the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award which "stated that...	Admitted	The Respondent's own decision - List item 4.
255	That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours."	Admitted	The Respondent's own decision - List item 4.
256	That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour..."	Admitted	The Respondent's own decision - List item 4.
257	That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement."	Admitted	The Respondent's own decision - List item 4.
258	That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature".	Admitted	The Respondent's own decision - List item 4.
259	That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor".	Admitted	The Respondent's own decision - List item 4.

No.	Fact	Response	Why
THE APPELLANT'S CONTEMPORANEOUS ACCOUNT, AND THE DOCUMENTS THE RESPONDENT LISTS			
260	The Respondent's amended List of Documents dated 14 August 2026 lists at item 12 an email from the Appellant to WorkCover Queensland dated 12 July 2024 with the attachment described as "Event overview ~...	Admitted	The Respondent's own document.
261	That amended List of Documents lists at item 14 an email from the Appellant to WorkCover Queensland dated 18 July 2024 with the attachment described as "Witness statement - Carolyn Jeffrey".	Admitted	The Respondent's own document.
262	That amended List of Documents lists at item 16 an email from Ms Carolyn Jeffrey to WorkCover Queensland dated 1 August 2024 described as a follow up statement.	Admitted	The Respondent's own document.
263	That amended List of Documents lists at item 25 an email from the Appellant to WorkCover Queensland dated 29 August 2024 described as regarding the after hours on call change, with the attachment described...	Admitted	The Respondent's own document.
264	That amended List of Documents lists at item 26 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email:...	Admitted	The Respondent's own document.
265	That amended List of Documents lists at item 27 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email:...	Admitted	The Respondent's own document.
266	The Appellant provided the document described at item 12 to WorkCover Queensland on 12 July 2024.	Admitted	The Respondent's own document.
267	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 11: "The respondent does not admit the allegations in stressor 1(a) of the appellants statement, because...	Admitted	True of the pleading. Admitting it closes the topic for good.
268	On 11 August 2026 the Appellant served on the Respondent a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of Stressor 1(a) of the...	Admitted	Served on the Respondent 11 August 2026.
FACTS ALREADY ADMITTED BY THE RESPONDENT IN THIS PROCEEDING ON 18 FEBRUARY 2026			
269	On 18 February 2026 the Respondent, by Ms Renee Matheson, Senior Appeals Officer, signed and served on the Appellant a response to the Appellant's notice to admit facts in this proceeding.	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
270	In that response the Respondent admitted paragraph 1 of that notice, being: "On 17-18 March 2024, the Appellant was rostered to finish work at 23:00 and commence his next shift at 06:00, resulting in a...	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
271	In that response the Respondent admitted paragraph 3 of that notice, being: "The Employer's 'Fatigue Risk Management Policy' and the relevant Award require a minimum break of 10 hours between shifts, or 8...	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.

No.	Fact	Response	Why
272	In that response the Respondent denied paragraph 4 of that notice, on the stated ground: "because in June 2020, the Appellant signed an agreement allowing an 8 hour break between shifts".	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
273	In that response the Respondent admitted paragraph 5 of that notice, being that Ms Reese stated in an email dated 7 August 2023: "I do realise in this instance there was a rostering error that was..."	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
274	In that response the Respondent admitted "that Ms Taylor removed a page from the workplace communications book", and did not admit that the page contained the Appellant's handwriting "because the respondent..."	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
275	In that response the Respondent admitted paragraph 8 of that notice, being: "Maintaining accurate contact details for medical staff is a critical function of the Switchboard to ensure effective clinical..."	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
276	In admitting that paragraph the Respondent added: "and says that there was a procedure in place for this to occur".	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
277	In that response the Respondent denied paragraph 9 of that notice on the stated ground: "because there was already a procedure in place".	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
278	In that response the Respondent admitted paragraph 14 of that notice, being that in an email to Ms Reese dated 6 June 2023 Ms Taylor stated: "I did raise my voice and asked him to please stop talking over..."	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
279	In that response the Respondent admitted that the Union Encouragement Policy QH-POL-248 "says words to that effect", the effect pleaded being that the Policy "requires managers to take a 'positive,..."	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
280	In that response the Respondent admitted "that the Appellant sent a text to Ms Taylor at 5.03pm that he was 'just putting his hand up'", and said that this was not a formal notification.	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
281	In that response the Respondent admitted "the contents of the Respondent's review unit decision", and said that this fact is not relevant because the appeal is a hearing de novo.	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
282	In that response the Respondent admitted paragraph 40 of that notice, being the instruction of Ms E Grant of Payroll of 3 May 2024.	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
283	In that response the Respondent admitted "the fact that Ms Taylor submitted the AVAC on 28 May 2024".	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.

No.	Fact	Response	Why
284	In that response the Respondent admitted paragraph 46 of that notice, being the email of Ms Taylor of 21 May 2024 stating that she was waiting for payroll confirmation and would submit an AVAC for the next...	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
285	In that response the Respondent denied paragraphs 42 to 45 of that notice on the stated grounds: "because the comparator used does not represent a true comparator in the circumstances and because the roster..."	Admitted	Already admitted by the Respondent on 18 February 2026. Cannot be withdrawn without leave.
MATTERS THE RESPONDENT DOES NOT ALLEGE			
286	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was subject to any disciplinary process at any time before 18 June...	Admitted	True of the pleading. Admitting it closes the topic for good.
287	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant's work performance was the subject of any formal performance...	Admitted	True of the pleading. Admitting it closes the topic for good.
288	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not describe any communication with the Appellant before 18 June 2024 as a warning, or as part...	Admitted	True of the pleading. Admitting it closes the topic for good.
289	Paragraph 27 of the Respondent's amended statement of facts and contentions dated 13 May 2026 does not identify, by particular, date, document or cross-reference, the management action relied upon for the...	Admitted	The Respondent's own pleading.